

IN THE SENATE

SENATE BILL NO. 1304

BY RESOURCES AND ENVIRONMENT COMMITTEE

AN ACT

RELATING TO IRRIGATION CONDUIT RIGHTS-OF-WAY; AMENDING SECTION 42-1102, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE RIGHTS ASSOCIATED WITH AN IRRIGATION EASEMENT OR RIGHT-OF-WAY; AMENDING CHAPTER 12, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1201, IDAHO CODE, TO DEFINE A TERM; AMENDING SECTION 42-1201, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE OPERATION AND MAINTENANCE OF IRRIGATION CONVEYANCE FACILITIES AND TO REDESIGNATE THE SECTION; AMENDING SECTION 42-1207, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE PLACEMENT OF IRRIGATION CONDUITS, TO PROVIDE FOR A RIGHT OF AN OWNER OR OPERATOR OF AN IRRIGATION EASEMENT OR RIGHT-OF-WAY, TO REDESIGNATE THE SECTION, AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 42-1208, IDAHO CODE, TO REVISE PROVISIONS REGARDING EASEMENTS, RIGHTS-OF-WAY, AND OTHER REAL PROPERTY NOT SUBJECT TO ADVERSE PROPERTY AND TO REDESIGNATE THE SECTION; AMENDING SECTION 42-1209, IDAHO CODE, TO REVISE PROVISIONS REGARDING ENCROACHMENTS ON EASEMENTS AND RIGHTS-OF-WAY AND TO REDESIGNATE THE SECTION; AMENDING SECTION 18-4308, IDAHO CODE, TO PROVIDE A CORRECT CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 42-1102, Idaho Code, be, and the same is hereby amended to read as follows:

42-1102. OWNERS OF LAND -- RIGHT TO RIGHT-OF-WAY. (1) Owners or claimants to land that do not have sufficient length of frontage on a stream to afford the requisite fall for a ditch, canal, lateral, drain, or other conduit on their own premises for the proper irrigation or drainage thereof, or where the land proposed to be irrigated is back from the banks of such stream, and convenient facilities otherwise for the watering of said lands cannot be had, such owners or claimants are entitled to a right-of-way through the lands of others for a ditch, canal, lateral, drain, or conduit to convey water to the place of use for the purposes of irrigation or to provide drainage of irrigated land.

(2) The right-of-way for a ditch, canal, lateral, drain, or other conduit shall include but is not limited to the reasonable exercise of the following rights:

(a) The right to enter the land across which the right-of-way extends for the purposes of accessing, inspecting, operating, cleaning, maintaining, and repairing the ditch, canal, lateral, drain, conduit, embankments, and irrigation structures and to occupy such width of the land along the ditch, canal, lateral, drain, conduit, and embankments as is necessary to properly perform such work with personnel and with such equipment as is commonly used or is reasonably adapted to that work.

(b) The right to remove from the ditch, canal, lateral, drain, conduit, embankments, and irrigation structures the debris, soil, vegetation, and other material the ditch, canal, lateral, drain, or conduit owner or operator reasonably deems necessary to properly access, inspect, operate, clean, maintain, and repair them. The owner or operator has the right and discretion to transport the material from the right-of-way, to utilize the material for reconstruction, repair, or maintenance of the ditch, canal, lateral, drain, conduit, embankments, irrigation structures, and related roads and access areas, and to deposit and leave the material within the right-of-way, provided that the deposits occupy no greater width of land along the ditch, canal, lateral, drain, conduit, and embankments than is reasonably necessary.

(c) The right to occupy the right-of-way during any season of the year to perform the work of operating, cleaning, maintaining, and repairing the ditch, canal, lateral, drain, conduit, embankments, and irrigation structures without prior notice to the owner or occupant of the land across which the right-of-way extends.

(d) The right to construct, install, modify, maintain, or relocate any structure, headgate, siphon, measuring device, road, fence, gate, or other appurtenance within the right-of-way that facilitates the delivery or drainage of water or is used to access, protect, inspect, operate, clean, maintain, or repair the ditch, canal, lateral, drain, or other conduit.

~~(d)~~ (e) The owner or operator of the ditch, canal, lateral, drain, or conduit is not obligated to maintain or control the right-of-way or vegetation for the benefit of the owners or claimants of lands of others.

(f) A servient estate owner's permission shall not be required to exercise the rights described in this section.

(3) Any servient estate owner shall be deemed to have notice that the owner of the ditch, canal, lateral, drain, or conduit has the right-of-way and all incidental rights confirmed or granted by this section if:

(a) The servient estate owner has actual or constructive knowledge of the ditch, canal, lateral, drain, or conduit; or

(b) The ditch, canal, lateral, drain, or conduit or any feature thereof is visible or reasonably discoverable.

(4) Rights-of-way provided by this section are essential for the operations of the ditches, canals, laterals, drains, and conduits. No person or entity shall cause or permit any encroachments onto the right-of-way, including public or private roads, utilities, fences, gates, pipelines, structures, landscaping, trees, vegetation, or other construction or placement of objects, without the written permission of the owner or operator of the right-of-way in order to ensure that any such encroachments will not unreasonably or materially interfere with the use and enjoyment of the right-of-way. Such written permission shall not be unreasonably withheld.

(5) Encroachments of any kind placed in such right-of-way without express written permission of the owner or operator of the right-of-way shall be removed at the expense of the person or entity causing or permitting such encroachment, upon the request of the owner or operator of the right-of-way, in the event that any such encroachments unreasonably or materially interfere with the use and enjoyment of the right-of-way.

(a) The person or entity that caused or permitted the encroachment shall perform such removal, modification, repair, or restoration within a reasonable time after request from the owner or operator of the easement or right-of-way or immediately upon such request in the event of reduced delivery or drainage of water, property damage, safety risk, or other emergency. What constitutes a reasonable time to respond to the request depends on the circumstances affecting the use, operation, maintenance, and repair of the ditch, canal, lateral, drain, or conduit and associated easement or right-of-way.

(b) If the person or entity that caused or permitted the encroachment fails to timely perform the requested actions, or in the event of reduced delivery or drainage of water, property damage, safety risk, or other emergency, the owner or operator of the easement or right-of-way may proceed to perform such actions at the expense of the person or entity causing or permitting the encroachment, as long as no work is performed on any municipal or public utility line.

(6) Any person or entity that causes or permits an encroachment shall be responsible for its use, operation, maintenance, repair, and replacement to prevent unreasonable or material interference with the ditch, canal, lateral, drain, or conduit and the associated easement or right-of-way and shall be liable for all damages that may accrue therefrom.

(7) Nothing in this section shall in any way affect the exercise of the right of eminent domain for the public purposes set forth in section 7-701, Idaho Code.

(8) This section shall apply to ditches, canals, laterals, drains, conduits, and embankments existing on the effective date of this act, as well as to ditches, canals, laterals, drains, conduits, and embankments constructed or existing after such effective date.

SECTION 2. That Chapter 12, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1201, Idaho Code, and to read as follows:

42-1201. DEFINITIONS. As used in this chapter, "irrigation conduit" means a ditch, canal, lateral, drain, pipeline, or other surface channel or buried conduit that is used to convey water to the place of use for the purposes of irrigation or to provide drainage of irrigated land.

SECTION 3. That Section 42-1201, Idaho Code, be, and the same is hereby amended to read as follows:

~~42-1201~~ 42-1202. OPERATION AND MAINTENANCE OF IRRIGATION CONVEYANCE FACILITIES. (1) Every person or entity owning or controlling any ~~ditch, canal, lateral, or irrigation~~ conduit for the purpose of irrigation shall:

(a) During the time the ~~ditch, canal, lateral, or irrigation~~ conduit is operated to deliver water for irrigation, keep a flow of water therein sufficient to meet the needs of the persons or entities entitled to the use of water therefrom. Such duty may be adjusted when there is insufficient water in the public streams or other natural water sources or when the board of directors or governing body of an entity furnishing water

deems it in the best interests of that entity to reduce the water supply or dates of availability;

(b) Construct the necessary outlets in the ~~ditch, canal, lateral, or irrigation~~ conduit for proper delivery of water to persons and entities having rights to the use of the water;

(c) Not permit a greater quantity of water to be turned into the ~~ditch, canal, lateral, or irrigation~~ conduit than it will contain or than can be used for beneficial or useful purposes to prevent the wasting and useless discharge and running away of water; and

(d) Carefully keep and maintain the ~~ditch, canal, lateral, or irrigation~~ conduit in good repair and condition so as not to damage or in any way injure the property or premises of others and to prevent the water conveyed therein from wasting during the irrigation season.

(2) The duties to operate and maintain an irrigation ~~ditch, canal, lateral, or~~ conduit, whether statutory or common law, require reasonable care only and shall not be construed to impose strict liability or to otherwise enlarge the liability of the owners or operators thereof. The owners, constructors, or operators of irrigation ~~ditches, canals, laterals, or~~ conduits, while responsible for their own acts or omissions, shall not be liable for damage or injury caused by:

(a) The diversion or discharge of water into a ~~ditch, canal, lateral, or irrigation~~ conduit by a third party without the permission of the owner or operator thereof;

(b) Any other act or omission of a third party, other than an employee or agent of the owner or operator of the ~~ditch, canal, lateral, or irrigation~~ conduit; or

(c) An act of God, including but not limited to fire, earthquake, storm, or similar natural phenomenon.

(3) The provisions of this section shall not be construed to impair any defense that an owner, constructor, or operator of a ~~ditch, canal, lateral, or~~ irrigation conduit may assert in a civil action.

SECTION 4. That Section 42-1207, Idaho Code, be, and the same is hereby amended to read as follows:

~~42-1207~~ 42-1203. RELOCATION AND PIPING OF IRRIGATION CONVEYANCE FACILITIES AND DRAINAGE FACILITIES. (1) Where any ~~ditch, canal, lateral, drain, or buried~~ irrigation conduit has heretofore been, or may hereafter be, constructed across or beneath the lands of another:

(a) The servient estate owner may, at his own expense, relocate or pipe the ~~ditch, canal, lateral, drain, or buried~~ irrigation conduit to any other part of his land, but such change must be made in such a manner as not to impede the flow of the water therein, or to otherwise injure any person or entity using or interested in such ~~ditch, canal, lateral, drain, or buried~~ irrigation conduit; or

(b) The servient estate owner may, at his own expense, place the ~~ditch, canal, lateral, or drain~~ irrigation conduit in a pipe, culvert, or other conduit on his land, provided that the pipe, culvert, or other conduit installation and backfill reasonably meet standard specifications for such materials and construction, as set forth in the Idaho standards for

1 public works construction or other standards recognized by the city or
2 county in which the burying is to be done.

3 (2) The right and responsibility for operation and maintenance of a
4 ~~ditch, canal, lateral, drain, or buried~~ an irrigation conduit that is re-
5 located or placed in conduit by the servient estate owner shall remain with
6 the owner of the ~~ditch, canal, lateral irrigation conduit~~, or drain, but the
7 servient estate owner, his heirs, executors, administrators, successors,
8 and assigns shall be responsible for any increased operation and maintenance
9 costs, including rehabilitation and replacement, unless otherwise agreed
10 in writing with the owner of the ~~ditch, canal, lateral, drain, or buried~~
11 irrigation conduit.

12 (3) (a) The written permission of the owner or operator of a ~~ditch,~~
13 ~~canal, lateral, drain, or buried~~ an irrigation conduit must first be
14 obtained before it is relocated or placed in a pipe, culvert, or other
15 conduit by the owner of the servient estate, in order to ensure that:

16 (i) Such change will not impede the flow of water therein, un-
17 reasonably or materially interfere with access, use, operation,
18 maintenance, cleaning, or repair, or otherwise injure any person
19 or entity using such ~~ditch, canal, lateral, drain, or buried irri-~~
20 ~~gation~~ conduit;

21 (ii) Adequate provision is made for the payment of any increased
22 operation and maintenance costs, including rehabilitation and re-
23 placement, unless otherwise agreed in writing with the owner or
24 operator of the ~~ditch, canal, lateral, drain, or buried~~ irrigation
25 conduit; and

26 (iii) Adequate provision is made documenting, protecting, and
27 perpetuating the ~~ditch, canal, lateral, drain, or buried~~ irri-
28 gation conduit right-of-way pursuant to section 42-1102, Idaho
29 Code.

30 (b) Such written permission shall not be unreasonably withheld.

31 (4) ~~A ditch, canal, lateral, drain, or buried~~ An irrigation conduit
32 that is relocated or placed in a pipe, culvert, or other conduit without
33 such express written permission shall be removed, modified, repaired,
34 or restored to its prior location or condition, as directed by the owner
35 thereof, at the expense of the person or entity that caused or permitted such
36 relocation or placement in pipe, culvert, or other conduit, in the event
37 it unreasonably or materially interferes with the use and enjoyment of the
38 easement or right-of-way.

39 (a) The person or entity that caused or permitted the relocation or
40 the placement in pipe, culvert, or other conduit shall perform such re-
41 moval, modification, repair, or restoration within a reasonable time
42 after request from the owner or operator of the easement or right-of-
43 way, or immediately upon such request in the event of reduced delivery
44 or drainage of water, property damage, safety risk, or other emergency.
45 What constitutes a reasonable time to respond to the request depends on
46 circumstances affecting the use, operation, maintenance, and repair of
47 the ~~ditch, canal, lateral drain, or buried~~ irrigation conduit and asso-
48 ciated easement or right-of-way.

49 (b) If the person or entity that caused or permitted the relocation or
50 the placement in pipe, culvert, or other conduit fails to timely perform

the requested actions, or in the event of reduced delivery or drainage of water, property damage, safety risk, or other emergency, the owner or operator of the easement or right-of-way may proceed to perform such actions at the expense of the person or entity that caused or permitted the relocation or piping.

(5) ~~The owner or operator of a ditch, canal, lateral, drain, or buried~~ An irrigation conduit that has been constructed across or beneath the lands of another may relocate or pipe the facility. be relocated or piped by its owner or operator as follows:

(a) ~~Prior to relocating a ditch, canal, lateral, drain, or buried irrigation conduit, the written permission of the owner of the servient estate shall be obtained~~ The irrigation conduit's owner or operator shall obtain the servient estate owner's written permission prior to relocating or piping the conduit outside of the easement or right-of-way.

(b) The irrigation conduit's owner or operator shall have the right to relocate or pipe an irrigation conduit within the easement or right-of-way without obtaining the servient estate owner's permission.

~~(b) (c)~~ (c) ~~The owner or operator of the ditch, canal, lateral, drain, or buried irrigation conduit~~ an open surface channel used for irrigation or drainage shall have the right to place it in a buried conduit within the easement or right-of-way, without the permission of the servient estate owner, in accordance with standard specifications for pipe, materials, installation, and backfill, as set forth in the Idaho standards for public works construction or other standards recognized by the city or county in which the burying is to be done, and as long as the construction is accomplished in a manner that the surface of the servient estate outside the easement or right-of-way and the owner's use thereof is not disrupted and is restored to its prior condition as expeditiously as possible, but no longer than thirty (30) days after the completion of construction.

~~(e) (d)~~ (d) ~~The owner of the servient estate may request that the conduit be installed along a different route than the existing route of the ditch, canal, lateral, or drain irrigation conduit,~~ provided that:

(i) The conditions of subsection (3) of this section are satisfied; and

(ii) The servient estate owner, his heirs, executors, administrators, successors, and assigns shall be responsible for any increased construction or future maintenance costs necessitated by said relocation. Maintenance of the buried conduit shall be the responsibility of the conduit owner or operator.

(6) This section shall apply to ~~ditches, canals, laterals, drains, and buried~~ irrigation conduits existing on or established after July 1, 2024.

SECTION 5. That Section 42-1208, Idaho Code, be, and the same is hereby amended to read as follows:

~~42-1208~~ 42-1204. EASEMENTS, RIGHTS-OF-WAY, AND OTHER REAL PROPERTY NOT SUBJECT TO ADVERSE POSSESSION. (1) The easements, rights-of-way, or real property owned by irrigation districts, Carey act operating companies, nonprofit irrigation entities, lateral ditch associations, and drainage districts are not subject to adverse possession.

(2) No person shall prevent free access of authorized personnel on such easements, rights-of-way, or other real property, or construct any obstruction on such easements, rights-of-way, or other real property in an effort to adversely possess said easement, right-of-way, or other real property.

SECTION 6. That Section 42-1209, Idaho Code, be, and the same is hereby amended to read as follows:

~~42-1209~~ 42-1205. ENCROACHMENTS ON EASEMENTS AND RIGHTS-OF-WAY. (1) Easements or rights-of-way operated, maintained, controlled, or owned by irrigation districts, Carey act operating companies, nonprofit irrigation entities, lateral ditch associations, and drainage districts are essential for the operations of such irrigation and drainage entities. Accordingly, no person or entity shall cause or permit any encroachments onto the easements or rights-of-way, including any public or private roads, utilities, fences, gates, pipelines, structures, landscaping, trees, vegetation, or other construction or placement of objects, without the written permission of the irrigation district, Carey act operating company, nonprofit irrigation entity, lateral ditch association, or drainage district owning, operating, maintaining, or controlling the easement or right-of-way, in order to ensure that any such encroachments will not unreasonably or materially interfere with the use and enjoyment of the easement or right-of-way and the incidental rights and protections described in sections 42-1102 and ~~42-1207~~ 42-1203, Idaho Code. Such written permission shall not be unreasonably withheld.

(2) Encroachments of any kind placed in such easement or right-of-way, without such express written permission, shall be removed or modified, and the ~~ditch, canal, lateral, drain, irrigation~~ conduit, easement, or right-of-way shall be repaired or restored at the expense of the person or entity causing or permitting such encroachments, upon the request of the persons operating, maintaining, or controlling the easement or right-of-way or the owner of the easement or right-of-way, in the event that any such encroachments unreasonably or materially interfere with the use and enjoyment of the easement or right-of-way.

(a) The person or entity that caused or permitted the encroachment shall perform such removal, modification, repair, or restoration within a reasonable time after request from the owner or operator of the easement or right-of-way, or immediately upon such request in the event of reduced delivery or drainage of water, property damage, safety risk, or other emergency. What constitutes a reasonable time to respond to the request depends on circumstances affecting the use, operation, maintenance, and repair of the ~~ditch, canal, lateral, drain, or buried~~ irrigation conduit and associated easement or right-of-way.

(b) If the person or entity that caused or permitted the encroachment fails to timely perform the requested actions, or in the event of reduced delivery or drainage of water, property damage, safety risk, or other emergency, the owner or operator of the easement or right-of-way may proceed to perform such actions at the expense of the person or entity that caused or permitted the encroachment, as long as no work is performed on any municipal or public utility line.

1 (3) Any person or entity that causes or permits an encroachment shall be
2 responsible for its use, operation, maintenance, repair, and replacement to
3 prevent unreasonable or material interference with a ~~ditch, canal, lateral,~~
4 ~~drain, or an irrigation~~ conduit and the associated easement or right-of-way
5 and shall be liable for all damages that may accrue therefrom.

6 (4) Nothing in this section shall in any way affect the exercise of the
7 right of eminent domain for the public purposes set forth in section 7-701,
8 Idaho Code.

9 SECTION 7. That Section 18-4308, Idaho Code, be, and the same is hereby
10 amended to read as follows:

11 18-4308. CHANGE OF DITCH, CANAL, LATERAL, DRAIN, OR BURIED IRRIGATION
12 CONDUIT. Any person who relocates or places in pipe, culvert, or other con-
13 duit or buries a ditch, canal, lateral, or drain contrary to the provisions
14 of section ~~42-1207~~ 42-1203, Idaho Code, shall be guilty of a misdemeanor.

15 SECTION 8. An emergency existing therefor, which emergency is hereby
16 declared to exist, this act shall be in full force and effect on and after
17 July 1, 2026.